Mines Act

PERMIT REGULATION

B.C. Reg. 99/2013

Last amended January 25, 2021 by B.C. Reg. 6/2021

Contents

Part 1 – Definitions
1 Definitions

Part 2 – Deemed Authorizations
2 General limits on deemed authorizations
3 Chief permitting officer may overturn deemed authorization
4 Notices
5 Term extensions
6 IP surveys
7 Producing mines

Part 3 – Exemption from Permitting
8 Exemption for Ministry of Transportation

Part 1 – Definitions

Definitions

1 In this regulation:

"Act" means the *Mines Act*;

"exploration activities" has the same meaning as in Part 9 of the code;

"IP survey" means an induced polarization survey using exposed electrodes.

Part 2 – Deemed Authorizations

General limits on deemed authorizations

2 (1) This Part does not apply to a permittee who is subject to

(a) an order made under section 35 of the Act, or

(b) enforcement proceedings under section 37 of the Act.

(2) A deemed authorization under this Part is subject to the limits and requirements of this Part.

Chief permitting officer may overturn deemed authorization

3 (1) Despite any provision of this Part, the chief permitting officer may order that a deemed authorization under this Part does not apply in respect of a particular permit if the chief permitting officer considers the order necessary to protect health, safety, the environment or a cultural heritage resource.

(2) An order under subsection (1) may be made on issuing a permit under the Act or within 30 days of receiving a notice under this Part.

(3) The making of an order under this section does not prevent a person from making an application under section 10 (6) of the Act for a revision to a permit.

[am. B.C. Reg. 6/2021, App. 3, s. 1.]

Notices

4 Notices submitted under this Part must

(a) be in the form and manner required by the chief permitting officer, and

(b) include the information required by the chief permitting officer.

[am. B.C. Reg. 6/2021, App. 3, s. 1.]

Term extensions

5 (1) A permit for exploration activities is deemed to authorize the permittee to extend the term of the permit by up to 2 years.

(2) A permittee must give, in accordance with section 4, notice of an intended extension to the chief permitting officer no less than 30 days before expiry of the permit.

(3) A permit may be extended under this section only once.

[am. B.C. Reg. 6/2021, App. 3, s. 1.]

IP surveys

6 (1) A permit for exploration activities is deemed to authorize the permittee to conduct an IP survey.

(2) A permittee must give, in accordance with section 4, notice of the intention to conduct an IP survey to the chief permitting officer no less than 30 days before beginning an IP survey.

[am. B.C. Reg. 6/2021, App. 3, s. 1.]

Producing mines

7 (1) In this section:

"exploration drill program" means a mineral or coal exploration drill program;

"producing mine" means a mine

(a) for which a permit has been issued under the Act for production of minerals or coal, and

(b) that is currently operating.

(2) A permit for a producing mine is deemed to authorize the permittee to conduct both an exploration drill program and an IP survey.

(3) A permittee must give, in accordance with section 4, notice of the intention to conduct an exploration drill program or IP survey not otherwise referred to in the permit to the chief permitting officer no less than 30 days before beginning the exploration drill program or IP survey.

(4) An exploration drill program or IP survey not otherwise referred to in a permit may be conducted only within the area of land that would be or has been disturbed by a mine or mining activities approved under the permit.

[am. B.C. Reg. 6/2021, App. 3, s. 1.]

Part 3 – Exemption from Permitting

Exemption for Ministry of Transportation

8 (1) In this section, "Ministry of Transportation" means the ministry of the minister charged with the administration of the *Transportation Act*.

(2) A person or a ministry of the government is exempt under section 10 (1.1) (b) of the Act from the requirement to hold a permit in respect of a mine if both of the following conditions are met:

(a) the mine is operated exclusively by or for the Ministry of Transportation;

(b) the mine is not within a category prescribed as a reviewable project for the purposes of section 9 of the *Environmental Assessment Act*.

[am. B.C. Reg. 6/2021, App. 3, s. 2.]

[Provisions relevant to the enactment of this regulation: *Mines Act*, R.S.B.C. 1996, c. 293, section 38]

Queen's Printer for British Columbia©
Victoria, 2021

PURPOSE

The purpose of the Code is to:

(1) Protect employees and all other persons from undue risks to their health and safety arising out of or in connection with activities at mines.

(2) Safeguard the public from risks arising out of or in connection with activities at mines.

(3) Protect and reclaim the land and watercourses affected by mining.

(4) Monitor the extraction of mineral and coal resources and ensure maximum extraction with a minimum of environmental disturbance, taking into account sound engineering Practice and prevailing economic conditions.

DEFINITIONS

"*accident*" means an unintended event that results in physical harm to a person or damage to property. [Parts 1 and 7]

"*acid rock drainage (ARD)*" means low pH surface or ground water that results from the oxidation of sulphide minerals or, elemental sulphur, or the dissolution of acid generating minerals found in rocks and coal. [Parts 9 and 10]

"*active flood plain*", in relation to a stream, means land that is

(a) adjacent to the stream,
(b) covered by the stream water at least once every 5 years, and
(c) capable of supporting plant species that are typical of inundated or saturated soil conditions and distinct from plant species on freely drained upland sites adjacent to the land. [Part 9]

"*all-terrain cycle*" or "*ATC*" means a motorized vehicle that

(a) is designed to travel on 1, 2 or 3 low-pressure tires,
(b) has handlebars for steering, and
(c) has a seat designed to be straddled by the operator. [Part 4]

"*all-terrain vehicle*" or "*ATV*" means a motorized vehicle, not including an all-terrain cycle (ATC) or a utility terrain vehicle (UTV), that

(a) is designed to travel on 4 or more low-pressure tires, endless tracks or a combination of low-pressure tires and endless tracks,
(b) has handlebars for steering, and
(c) has a seat designed to be straddled by the operator. [Part 4]

"*asbestos free*" means containing less than 1% asbestos. [Part 2]

"*autonomous*" means designed to perform the full job cycle without operator interaction or direct control by a person. [Parts 1, 4, and 6]

"*bail*" means the supporting structure for a shaft conveyance whereby the conveyance is connected, through suspension gear, to the hoisting rope. [Part 7]

"*bedrock*" means the rock, usually solid, that underlies soil or other unconsolidated material, superficial material. [Part 6]

"*bench*" means a horizontal step or floor above which material is excavated from a contiguous face and upon which drilling, blasting, and material haulage may be carried on. [Parts 6 and 10]

"*best available technology*" means the site specific combination of technologies and techniques that most effectively reduce the physical, geochemical, ecological and social risks associated with tailings storage during all stages of operation and closure. [Part 10]

"*biological monitoring*" means the recording of serial medical tests or examinations which indicate the progressing health status of an individual or group of individuals. [Part 2]

"*blast danger zone*" means an area in which there may be a danger to any person or property from flying material, or any other hazardous condition resulting from a blast. [Part 8]

"*blaster*" means a person who is qualified under this part of the code to conduct blasting operations at a mine. [Parts 8 and 9]

"*blasting agent*" means a relatively insensitive, ammonium nitrate explosive which includes an AN/FO mixture, emulsion, slurry, or watergel. [Part 8]

"*blasting certificate*" means a certificate issued under this part of the code which authorizes a person to conduct blasting operations at mines. [Parts 8 and 9]

"*blasting machine*" means a device used to initiate a blast. [Part 8]

"*board*" means

(a) in Part 1, the Board of Examiners as set out in section 1.13.1 of this code, and
(b) in Part 2, the Workers' Compensation Board continued under section 316 of the *Workers Compensation Act*. [Parts 2, 3, 4, and 10]

"*bootleg*" means a remnant of a blasthole that did not properly break when the blast was initiated. [Part 8]

"*bridge*" , in Part 9, means a structure that carries an exploration access above a stream, topographic depression or human-made structure.

"*bulk shipment*" means a shipment of a hazardous product that is contained in any of the following, without intermediate containment or intermediate packaging:

(a) a vessel that has a water capacity of equal to or greater than 450 L;
(b) a freight container, road vehicle, railway vehicle or portable tank;
(c) the hold of a ship;
(d) a pipeline. [Part 2]

"*bullying and harassment*" means any improper conduct, comment, display, action or gesture by a person towards another person, that the person knows, or reasonably ought to know, will cause the other person physical or psychological injury or illness, or to be humiliated or intimidated, but excludes any reasonable action taken by an employer or supervisor relating to the management and direction of employees or the place of employment. [Parts 1 and 3]

"*CAS registry number*" means the identification number assigned to a chemical by the Chemical Abstracts Service, a division of the American Chemical Society. [Part 2]

"*CSA*" means the Canadian Standards Association. [Parts 1, 2, 3, 4, 5, 7, and 8]

"*cage call system*" means an independent, electrically operated signaling system which may be activated at any shaft station and results in audible signals at all shaft stations [Part 7]

"*catchment berm*" means a bench designed to arrest material which sloughs from a face or wall at elevations above the face being worked. [Part 6]

"*category 1A dam*" means a dam as set out in section 10.2.11 (2).

"*category 1B dam*" means a dam as set out in section 10.2.11 (3).

"*category 2 dam*" means a dam as set out in section 10.2.11 (4).

"*category 3 dam*" means a dam that is not a category 1A dam, category 1B dam or category 2 dam.

"*certified audiometric technician*" means a person certified by the Ministry or by an agency or persons acceptable to the chief inspector. [Part 2]

"*certified person*" means a person who is certified by an agency or board acceptable to the chief inspector. [Parts 1, 4, 5, and 7]

"*chair*" means a moveable support arranged to hold a shaft conveyance as required. [Part 7]

"*clay and silt*" means those soils where more than 50% of the particles, by weight, are finer than the No. 200 (0.074 mm) U.S. standard sieve. [Parts 6 and 10]

"*clearing width*" means the width required to be cleared of standing timber to accommodate exploration access construction, maintenance and use. [Part 9]

"*climate change*" means a change of climate that

(a) is attributed directly or indirectly to human activity,
(b) alters the composition of the global atmosphere, and
(c) is in addition to natural climate variability observed over comparable time periods.

"*coarse coal rejects*" or "*CCR*" means the coarse particles remaining from the preparation of coal.

"*co-disposed tailings storage facility*" means a TSF that contains a combination of tailings and waste rock.

"*collar*" in this part, means the start of a drilled blast hole. [Parts 6, 8, and 9]

"*commission*" means the Hazardous Materials Information Review Commission established by the *Hazardous Materials Information Review Act* (Canada). [Part 2]

"*community watershed*" has the same meaning as defined in the *Forest and Range Practices Act*. [Part 9]

"*confined space*" means an area, other than an underground working, that includes all of the following:

(a) is enclosed or partially enclosed;
(b) is not designed or intended for continuous human occupancy;
(c) has limited or restricted means for entry or exit that may complicate the provision of first aid, evacuation, rescue or other emergency response service;
(d) is large enough and so configured that a worker could enter to perform assigned work. [Parts 3 and 6]

"*construction*" includes any activity involving the erection, modification, or dismantling of any structure or building and any road building associated therewith. [Parts 1, 4, 6, 7, 9, and 10]

"*container*" includes a bag, barrel, bottle, box, can, cylinder, drum, or similar package or receptacle. [Parts 2, 4, 6, 8, and 9]

"*culvert*" means one or more pipes, pipe arches or structures that are covered with soil, lie below an exploration access surface and are used to carry water, but does not include log structures for stream culverts. [Part 9]

"*dam*" means a barrier that is constructed for the retention of

(a) water, including water containing any other substance including tailings, or
(b) flowable tailings.

"*dam qualified person*" means a person designated under section 10.4.2 (1) (b).

"*deactivation*" means stabilization of an exploration site or exploration access when active use of the site or access is suspended seasonally or for other reasons for a period up to 3 years or longer if approved by an inspector. [Part 9]

"*deleterious substance*" means any substance that, if added to any water, would degrade or alter or form part of a process of degradation or alteration of the quality of that water so that it is rendered or is likely to be rendered deleterious to fish or fish habitat or to the use by humans or fish that frequent that water. [Part 9]

"*design summary document*" means the document described in section 10.5.4.

"*destructive testing*" means a test on a sample of a shaft rope where the rope or individual wires from the rope are broken by a testing machine. [Part 7]

"*detonator*" means a blasting cap, or other device used to initiate detonation of an explosive. [Part 8]

"*detonator house*" means a magazine used to store detonators. [Part 8]

"*dewatered tailings*" means tailings that have had the moisture content reduced so as to be handled using dry handling processes.

"*dewatered tailings storage facility*" means a TSF that contains dewatered tailings.

"*direct reading atmospheric testing device*" means a tool used for detecting and measuring worker exposure to gases, vapours, aerosols and fine particulates suspended in air. [Part 6]

"*dump berm*" means a barrier or ridge of materials other than snow or mud, acting as a guide that will indicate the limit of travel of a vehicle from which material is to be dumped. The heights of the ridge shall not be less than one half the height of the tire of the vehicle from which material is dumped. [Part 6]

"*dump block*" means a barrier of sufficient size and strength and anchored sufficiently to prevent a vehicle from entering an opening while coasting at a speed of less than 2 km/hr. [Part 6]

"*dumping position*" means the position of a haulage vehicle when stopped to dump material and is further defined for section 6.20.4 as the zones of contact between the dump surface and the rear vehicle wheels closest to the dump berm or edge of the bank. [Part 6]

"*dump material*" means waste or any material used in the construction of a dump or stockpile. [Part 6]

"*dump or stockpile*" means the accumulation of deposited rock fragments or other unconsolidated material. [Part 6]

"*dump person*" means a person authorized by the manager and stationed on a dump for the purposes of section 6.10 of the code. [Part 6]

"*dust exposure occupation*" means employment

(1) in an asbestos mine, or

(2) where a person is normally required to work more than 20% of the person's working time in any one month

  (a) underground in a mine,

  (b) in the mining activity of open pit and glory hole operations,

  (c) in crushing plants, assay grinding rooms, or coal cleaning plants,

  (d) in operations that involve dry milling or dry concentrating,

  (e) in wet concentrating plants where the plant is not adequately separated from dry crushing plants, or

(3) at other locations designated by the chief inspector. [Part 2]

"*electrical room*" means a dedicated space for housing electrical equipment for the purpose of electrical distribution or motor control, such as switchgear, transformers and panelboards. [Part 5]

"*electromagnetic device*" means a device using an electromagnetic system for examining shaft ropes. [Part 7]

"*emerging technology*" means a technological innovation to mining equipment and related infrastructure that has an inherent risk to health and safety including

  (a) autonomous and semi-autonomous machine systems,

  (b) battery electric vehicles,

  (c) hybrid vehicles,

  (d) hydrogen-powered vehicles, and

  (e) trolley-assisted technology.

"*employees*" means all persons employed at a mine.

"*employer*" means owner, agent, or manager as defined in the *Mines Act*. [Part 2]

"*engineer of record*" means a professional engineer who is retained and accepts professional responsibility for a TSF or dam under section 10.4.1.

"*environmental design flood*" means the hydrological event that is to be managed without release of water to the environment. [Part 10]

"*exploration access*" means trails and roads constructed, modified, excavated, bladed or created through frequent use including any associated structures. [Part 9]

"*exploration activities*" means the activities that are undertaken in the search for, and development of, coal and minerals as defined in the *Mineral Tenure Act*, excluding placer minerals, which activities

(a) include the following:
  (i) disturbance of the ground by mechanical means such as drilling, excavation trenches or test pits;
  (ii) blasting;
  (iii) construction, modification, maintenance, deactivation and reclamation of an exploration access;
  (iv) construction, modification, maintenance and reclamation of a camp;
  (v) induced polarization surveys using exposed electrodes;
  (vi) site reclamation, and
(b) do not include the following:
  (i) prospecting using hand tools;
  (ii) geological or geochemical surveying;
  (iii) airborne surveying;
  (iv) ground geophysical surveying without the use of exposed, energized electrodes;
  (v) hand trenching without the use of explosives;
  (vi) establishment of exploration grid lines that do not require the felling of trees, with the exception of trees and shrubs that create a hazard to safe passage and dangerous trees as defined in Part 26 of the Occupational Health and Safety Regulation, B.C. Reg. 296/97. [Part 9]

"*explosive*" means any chemical compound or mixture which, when detonated, violently decomposes producing a large volume of gas at high temperatures capable of having destructive effects. [Parts 1, 6, 7, 8, and 9]

"*face*" means a surface of rock, ore, coal, or other material exposed by blasting or excavation which extends from a bench or floor to an upper bench or to the natural land surface. [Part 6]

"*factor of safety (ropes)*" means the number of times the breaking strength of a shaft rope exceeds the weight it supports at a specified location of the rope. [Part 7]

"*failure scenario*" means an outline, from beginning to end, of a sequence of future events that

(a) may lead to a failure of a TSF or dam, and
(b) takes into account loading conditions and failure modes.

"*fill*" means a deposit of discrete particles, either loose or well-compacted, placed in layers or dumped into a ravine, valley, or depression. [Part 10]

"*final closure*" means a closed tailings storage facility or dam that does not pose ongoing material risks to people or the environment.

"*fish passage*" means the movement of fish at all life stages consistent with the natural state of fish streams. [Part 9]

"*fish stream*" means all streams, unless,

(a) a report from a qualified professional or technologist with adequate training or knowledge of fish habitat determines that the stream is a non-fish bearing stream, or

(b) the stream has been identified in a fish inventory carried out in accordance with the Ministry of Forests' publication "Fish Stream Identification Guidebook", as amended from time to time, as not containing any fish, or

(c) the stream is located upstream of a known barrier to fish passage, identified on a fish and fish habitat inventory map, where all reaches upstream of the barrier are simultaneously dry at any time during the year and no perennial fish habitats occur in any part of the upland drainage. [Part 9]

"*fixed substation*" means a permanent facility that is used to generate, transform, transmit or distribute electricity. [Part 5]

"*fugitive emission*" means a gas, liquid, solid, vapour, fume, mist, fog or dust that escapes from process equipment, emission control equipment or from a product where workers may be readily exposed. [Part 2]

"*haulage road*" means a part of a mine used for the transport of coal, aggregate, minerals, or waste rock. [Part 6]

"*hazard*" means an unsafe or harmful condition, substance, or circumstance.

"*hazard information*" means information on the proper and safe use, storage, and handling of a hazardous product and includes information relating to its health and physical hazards. [Part 2]

"*hazardous*" means the existence, or reasonable probability of the existence, of an unsafe or harmful condition, substance, or circumstance. [Parts 1 and 2]

"*hazardous product*" means any product, mixture, material or substance that is classified in accordance with the regulations made under section 15(1) of the *Hazardous Products Act* (Canada) in a category or subcategory of a hazard class listed in Schedule II of that Act. [Part 2]

"*hazardous substance*" means a substance which may be injurious to the health or safety of a worker. [Part 2]

"*hazardous waste*" means a hazardous product or other substance that is acquired or generated for recycling or recovery or is intended for disposal. [Part 2]

"*headframe*" means a structure at the top of a mine shaft which carries the sheaves for the hoisting ropes. [Part 7]

"*health professional*" means a person registered in a health profession, as defined in the *Health Professions Act*, in which a person exercises skill or judgment or provides a service related to

(a) the preservation or improvement of the health of individuals, or

(b) the treatment or care of individuals who are injured, sick, disabled or infirm. [Part 2]

"*hoist*" in this part of the code, "hoist" means a hoisting engine used to raise or lower persons, rock or any other material, in a shaft conveyance, through a vertical or inclined shaft. [Part 7]

"*hoist signaling system*" means an independent, electrically operated signaling system which may be activated at any place within the shaft and results in audible signals at the hoist operator's place of work and at all shaft stations. [Part 7]

"*impoundment*" means a body of water, which may contain another substance or flowable materials including flowable tailings, that is confined by natural barriers or dams.

"*Indigenous knowledge*" means the knowledge Indigenous peoples have, that

(a) has been acquired through their unique cultures, languages, spiritual teachings, values, history, governance, legal systems, experiences and observations within their traditional territories, and

(b) is dynamic, holistic, intergenerational and continuously evolving within contemporary society.

"*inflow design flood*" means the flood into the impoundment resulting from the design hydrologic event. [Part 10]

"*label*" means a group of written, printed or graphic information elements that relate to a hazardous product, which group is designed to be affixed to, printed on or attached to the hazardous product or the container in which the hazardous product is packaged. [Part 2]

"*laboratory sample*" means a sample of a hazardous product that is packaged in a container that contains less than 10 kg of the hazardous product and is intended solely to be tested in a laboratory, but does not include a sample that is to be used

(a) by the laboratory for testing other products, mixtures, materials or substances, or

(b) for educational or demonstration purposes. [Part 2]

"*land capability*" means the capability of achieving a specified land use estimated by limitations as a result of climate, topography and soils. [Part 10]

"*landform*" means a designated structure that can be considered to have a risk profile similar to the surrounding environment. [Part 10]

"*leg wires*" means the wires attached to an electric blasting cap used for initiating its detonation. [Part 8]

"*management system*" means the processes and procedures that collectively provide a systematic framework for ensuring that tasks are performed consistently in order to achieve a specified outcome and support continual improvement in performance.

"*magazine*" means a building, storehouse, or structure where explosive materials are kept or stored but does not include containers used for transporting explosives or day storage boxes. [Part 8]

"*major dump*" means a dump that contains a volume of dumped material that exceeds one million cubic metres, or has a dump height greater than 50 metres, or has an area that is covered by a dump that exceeds one hectare, or is founded upon natural or trimmed slopes that are sometimes steeper than 20 degrees from a horizontal plane, or contains material dumped or placed in a water course having a potential peak flow greater than one cubic metre per second, once in every 200 years, or any other mine dumps so declared by the **chief permitting officer**. [Part 10]

"*manufactured article*" means an article that is formed to a specific shape or design during manufacture, the intended use of which, when in that form, is dependent in whole or in part on its shape or design, and that under normal conditions of use will not release or otherwise cause a person to be exposed to a hazardous product. [Part 2]

"*mine hoisting plant*" means a mine hoist for an underground mine and includes the prime mover, transmission equipment, head frame, sheaves, ropes, shaft, shaft conveyances, shaft sinking equipment, shaft furnishings, hoist controls, counterweight, signaling and communications equipment and any other equipment used in connection with a hoist. [Part 7]

"*mishole*" "*(misfire)*" means a charge or part of a charge which, upon initiation, failed to completely detonate. [Part 8]

"*Musculoskeletal Disorders (MSD)*" means the term used to describe disorders of the bones, joints, ligaments, tendons, muscles and other soft tissues. These disorders refer to a whole range of conditions affecting different parts of the body. [Parts 1 and 2]

"*natural boundary*" means the visible high-water mark of any lake, river, stream or other body of water where the presence and action of the water is so common and usual, and so long continued in all ordinary years, as to mark on the soil of the bed of the body of water a character distinct from that of its banks in vegetation as well as in the nature of the soil itself. [Part 9]

"*non-destructive test*" means the examination of a part without subjecting it to physical distortion, damage, or destruction. [Part 7]

"*non-electric cap*" means a detonator which does not require an electric current to initiate its explosive charge. [Part 8]

"*occupational illness*" means a condition that results from exposure, in a workplace, to a physical, chemical, or biological agent to the extent that the normal physiological mechanisms are affected causing impairment to the worker. [Parts 1 and 2]

"*off-road vehicle*" or "*ORV*" means a utility terrain vehicle (UTV) or a snowmobile. [Part 4]

"*open pit shiftboss*" means a supervisor who is responsible for an open pit or part of it and holds an open pit shiftboss certificate granted pursuant to the code. [Part 6]

"*overburden*" means all unconsolidated naturally occurring material overlying bedrock. [Parts 6 and 10]

"*permit*" means a permit issued pursuant to section 10 (3) of the *Mines Act*. [Part 10]

"*primed cartridge*" means an explosive containing a detonator. [Part 8]

"*prime mover*" means a machine or other device that provides an initial source of motive power. [Part 7]

"*probable maximum flood*" means the hypothetical most severe flood that may credibly be expected to occur at a particular location resulting from the seasonal maximum combination of precipitation and snowmelt. [Part 10]

"*product identifier*" means, in respect of a hazardous product, the brand name, chemical name, common name, generic name, or trade name. [Part 2]

"*professional engineer*" means an individual who is

(a) registered to practise in the Province of British Columbia, according to the *Professional Governance Act* and Engineers and Geoscientists Regulation, and

(b) qualified to practise in the relevant discipline.

"*provisional blasting certificate*" means a blasting certificate issued by the manager, valid for a maximum of 90 days. [Part 8]

"*qualified professional*" means an individual who

(a) is registered, and in good standing, with a professional organization in British Columbia governed under an enactment, and

(b) is acting within the individual's area of professional expertise. [Parts 3, 6, 9, and 10]

"*quantifiable performance objectives*" means the measurable monitoring parameters that are required to be maintained within predetermined limits.

"*ramp*" means a sloping roadway and in the case of a surface mine, connects two levels of excavation or benches. [Part 6]

"*reach*" means a portion of a watercourse that has a consistent channel width, morphology and gradient. [Part 9]

"*reactivated mine hoisting plant*" means a mine hoisting plant that is placed into service after being out of use for a period in excess of one year. [Part 7]

"*readily available*" means, when used in connection with a SDS, present in an appropriate place and in the form of either

(a) a physical copy that can be handled, or

(b) an electronic copy,

that is accessible to a worker at all times. [Part 2]

"*regionally significant wildlife habitat*" means those site specific habitats identified through formal government processes as requiring special management attention. [Part 9]

"*reportable incident*" means an incident referred to in section 1.7.1. [Part 1]

"*riparian setback*" means an area of land adjacent to a stream, wetland or lake of a width defined in Table 9.1. [Part 9]

"*risk assessment*" means a systematic process of evaluating the potential risks that may be involved in a projected activity or undertaking. [Parts 3, 6, and 10]

"*road prism*" means cross-section of the ground containing the exploration access surface, including the cut and fill slopes. [Part 9]

"*round*" means a number of charged blast holes to be fired in a specific sequence. [Part 8]

"*safety catch*" means a safety appliance or fitting which transfers the weight of the cage onto the shaft guides if the hoisting rope breaks. [Part 7]

"*safety data sheet*" or "*SDS*" means a document that contains, under the headings that, by virtue of the regulations made under subsection 15 (1) of the *Hazardous Products Act* (Canada), are required to appear in the document, information about a hazardous product, including information related to the hazards associated with any use, handling or storage of the hazardous product in a work place. [Part 2]

"*safety dogs*" means those portions of the safety catches which penetrate the shaft guides if the hoisting rope breaks. [Part 7]

"*safety fuse assembly*" means a device to convey flame to a non-electric blasting cap. It consists of a train of black powder, tightly wrapped and enclosed with waterproof material, which burns continuously at a constant rate when ignited by means of an attached igniter cord connector. [Part 8]

"*sand and gravel*" means those soils where more than 50% of the particles, by weight, are coarser than the No. 200 (0.074 mm) U.S. standard sieve. [Part 6]

"*semi-autonomous*" means designed to perform a subset of tasks within the full job cycle without operator interaction or direct control by a person. [Parts 1, 4, and 6]

"*sensitive area*" means any area where the blast including blast vibration or air blast may have an adverse effect on fish or wildlife. [Part 8]

"*serious injury*" means an injury that can reasonably be expected at the time of an incident to endanger life or cause permanent injury. [Part 1]

"*sexual harassment*" means

(a) any vexatious comment or conduct by a person towards another person relating to the other person's sex, sexual orientation, gender identity or gender expression that the person knows, or reasonably ought to know, will be unwelcome, or

(b) any sexual solicitation or advance by a person towards another person in circumstances in which the person

(i) knows, or reasonably ought to know, the sexual solicitation or advance will be unwelcome, or

(ii) is in a position to confer, grant or deny a job benefit or advancement to the other person. [Parts 1, 3]

"*shaft casing*" means the continuous steel lining of a shaft. [Part 7]

"*shaft conveyance*" means a conveyance raised or lowered by a mine hoist in a shaft and includes a bucket, a single or multi-deck cage, a skip or combination of skip and cage used to transport workers and material or both. [Part 7]

"*shaft furnishing*" means any installation within the shaft, other than casing and lining, which is required to support the shaft or services therein. [Part 7]

"*shaft lining*" means the timber, concrete, brick or steel structure, or weld mesh, fixed around the shaft to support the walls. This does not imply continuous lining. [Part 7]

"*shaft obstruction*" means any protrusion into a shaft compartment in which hoisting may be carried out. [Part 7]

"*shaft or winze*" means an excavation of limited perimeter compared with its depth in which persons and material, or both, are transported by means of a mine hoisting plant. [Part 7]

"*shaft rope*" means any rope used with a shaft hoist installation including a hoisting rope, a balance rope and a guide rope. [Part 7]

"*shoulder barrier*" means a barrier or ridge of material, other than snow or mud, placed along the edge or crest of a surface roadway, ramp, dump or stockpile where the vehicles operate and where there is a drop-off of more than 3 m beyond the edge or crest. The height of the barrier shall not be less than 3/4 of the height of the largest tire on any vehicle used at that location. [Part 6]

"*significant new data*" means new data regarding the hazard presented by a hazardous product that change its classification in a category or subcategory of a hazard class, or result in its classification in another hazard class, or change the ways to protect against the hazard presented by the hazardous product. [Part 2]

"*snowmobile*" means a motorized vehicle that

(a) is designed for travel on snow or ice,
(b) has one or more steering skis,
(c) is self-propelled by means of one or more endless tracks driven in contact with the ground, and
(d) has a seat designed for the rider to sit astride. [Part 4]

"*socket*" means a short stub of a drill hole commonly found after a hole has been blasted. [Part 8]

"*soil*" means all unconsolidated mineral or organic material above bedrock that is capable of supporting plant life. [Parts 6, 9, and 10]

"*standard guardrail*" means a guardrail structure comprised of a top rail approximately 1070 mm (42") above floor level, a toe-board, and a midrail approximately midway between the underside of the top rail and the upper edge of the toe-board. They shall be designed to withstand a load of 900 N (200 lbs.) applied in any direction and at any point on the top rail. [Part 4]

"*stream*" means any naturally occurring reach flowing on a perennial or seasonal basis with a continuous channel bed and banks, whether or not the bed or banks of the reach are locally obscured by overhanging or bridging vegetation or soil mats, if the channel bed

(a) is scoured by water, or

(b) contains any material collection of inorganic alluvium deposited by water. [Part 9]

"*stream width*" means the horizontal distance between stream banks on opposite sides of the stream measured

(a) at right angles to the general orientation of the banks, and

(b) between the points on each bank indicated by a definite change in vegetation and sediment texture marking the normal annual flood level and sometimes shown by the edges of rooted terrestrial vegetation. [Part 9]

"*suitable*" means suitable to the satisfaction of the inspector. [Part 1]

"*supplier label*" means a label provided by a supplier that contains the information elements required by the *Hazardous Products Act* (Canada). [Part 2]

"*supplier material safety data sheet*" means a material safety data sheet provided by a supplier. [Part 2]

"*surface roadway*" means any part of a mine where vehicles carrying persons, materials, or equipment, regularly travel, and includes a haulage road. [Part 6]

"*surficial soil material*" means those soils commonly contained in the upper layers of the overburden mass, which are suitable for use in reclamation, either as growth medium, soil covers and seals, or other reclamation requirements. [Part 10]

"*suspension gear*" mean all components necessary to effect a secure attachment between the hoisting rope and the conveyance. [Part 7]

"*TSF qualified person*" means the person designated under section 10.4.2 (1) (a) of this code. [Part 10]

"*tailings*" means the residue remaining from the preparation of coal or from a concentrate of minerals but does not include coarse coal rejects or the by-products from placer mining, sand and gravel pits, rock quarries or industrial mineral quarries.

"*tailings storage facility*" or "*TSF*" means a facility that stores tailings and manages water, if any, related to the tailings, including tailings dams, tailings deposition, water reclamation systems, water management systems and associated engineering works and structures, but does not include tailings placed in an underground mine.

"*temporary bridge*" means a bridge whose expected life at its current location is 15 years or less. [Part 9]

"*threshold limit value – ceiling (TLV-C)*" means the concentration that must not be exceeded during any part of the working exposure. [Part 2]

"*threshold limit value – short term exposure limit (TLV – STEL)*" means the concentration to which workers can be exposed continuously for a short period time, provided the daily TLV-TWA is not exceeded. It must be no longer than 15 minutes, be separated by at least 60 minutes if repeated, and occur no more than 4 times per day. [Part 2]

"*threshold limit value – time weighted average (TLV-TWA)*" means the time weighted average concentration for a normal 8-hour day and a 40-hour workweek to which nearly all workers can be repeatedly exposed without adverse effect. [Part 2]

"*toe-board*" means a metal or wood guard strip, approximately 100 mm in height, placed along the bottom of a guardrail structure, and having a clearance of not greater than 13 mm (1/2") between its lower edge and the walkway or platform to prevent tools or other material from falling off. [Part 4]

"*underground enclosure*" , in Part 4, means any area in an underground mine that is used to enclose equipment, machinery, or to provide shelter, and is a suitable working environment. It includes service garages, fuelling stations, fuel, and lubrication storage areas. [Part 4]

"*urban area*" means an area, within which there are residences or other structures that may be impacted by the adverse effects of a blasting operation. [Part 8]

"*utility terrain vehicle*" or "*UTV*" means a motorized vehicle, not including a golf cart or other low-speed vehicle, that

(a) is designed to travel on 4 or more low-pressure tires, endless tracks or a combination of low-pressure tires and endless tracks,
(b) has a steering wheel or steering stick, and
(c) has one or more seats not designed to be straddled. [Part 4]

"*violence*" means

(a) any use, or attempt to use, physical force by a person towards another person that causes, or intends to cause, physical injury to the other person, or
(b) any threatening statement or behaviour by a person towards another person that gives the other person reasonable cause to believe that the other person is at risk of physical injury. [Parts 1, 3]

"*WHMIS*" means the Workplace Hazardous Materials Information System referred to in section 2.13. [Part 2]

"*wall*" means a surface of rock or material exposed by the excavation of one or more faces and benches in successive horizontal layers. [Part 6]

"*watercourse*" means a natural stream or source of water, whether usually containing water or not, and includes any lake, river, creek, spring, ravine, wetland, and gulch. [Parts 6 and 10]

"*wetland*" means land that is saturated with water, permanently or intermittently, long enough for the excess water and resulting low oxygen levels to produce conditions characterized by water-altered soils, dominance of water-loving plants and various

kinds of biological activity that are adapted to a wet environment, which land includes bogs, fens, marshes, swamps, shallow waters and other similar areas. [PART 9]

"*wetland complex*" means an area of combined wetlands that

(a) contains

(i) two or more wetlands, each greater than 5 ha in size, that are all located within 100 m of each other,

(ii) one wetland, greater than 5 ha in size, and one or more wetlands, each less than 5 ha in size, that are all located within 80 m of each other, or

(iii) two or more wetlands, each less than 5 ha in size, that are all located within 60 m of each other, and

(b) is 5 ha or larger, excluding upland areas. [PART 9]

"*winze*" (see shaft) [PART 7]

"*work platform*" means a platform attached through suspension gear to the hoisting rope and used by persons performing work in a mine shaft. [PART 7]

"*workplace label*" means a label that discloses

(a) a product identifier that is identical to that found on the SDS of the corresponding hazardous product,

(b) information for the safe handling of the hazardous product that is conveyed in a manner appropriate to the workplace, and

(c) that a SDS, if supplied or produced, is available. [PART 2]

TABLE OF CONTENTS

1.1	Application of Code	3
1.2	Variance	3
1.3	Authority to Enter a Mine	4
1.4	Posting and Distribution of *Mines Act*, Regulations, and Code	4
1.5	Hours of Employment	4
1.6	Occupational Health and Safety Committee	5
1.7	Reportable Incidents	7
1.8	Personal Protective Equipment	9
1.9	Workplace Conditions	11
1.10	Employees' Right to Refuse Work	12
1.11	Training	13
1.12	Supervision	13
1.13	Certification Procedure	15

Application of Code

Application

1.1.1 This code applies to

(a) all mines in the Province of British Columbia; and

(b) the manager must ensure that all employees or contractors who supervise workers are familiar with all appropriate parts of the act, regulations, and the code.

Absence of Code Requirements

1.1.2 Notwithstanding the absence of a specific code requirement, all work shall be carried out without undue risk to the health or safety of any person.

Conflicting Codes

1.1.3 If any conflict should arise between this code and any other code or standard with which compliance is required by this code, the provisions of this code shall prevail.

1.1.4 Where this code adopts in whole or in part a code or standard published by a national or international standards association if directed by the chief inspector shall include amendments to such standards as made from time to time.

1.1.5 Unless otherwise ordered by the chief inspector, equipment and buildings purchased or constructed must be in compliance with the standard in effect at the time of purchase or construction.

Variance

Variance of Code Provision

1.2.1 On application, the chief inspector may, by order, authorize a variance from a provision of the code for a particular mine.

1.2.2. A variance may only be made if the chief inspector has considered any comments subject to 1.2.3 (3), and is satisfied that the variance

(a) affords protection for the workers equal to or greater than the protection established by the provision being varied, or

(b) has substantially the same purpose and effect as the provision being varied.

1.2.3 The manager, the OHSC, or the local union or worker representative if there is no union, at an individual mine may

(1) submit a written request to the chief inspector for a variance of a provision of the code,

(2) shall, when submitting a request for a variance, provide the other two parties at the minesite with copies of the submission, and